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Case Number: 23TRCV03226 Hearing Date: July 15, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Wednesday, July 15, 2026

Calendar No.

PROCEEDINGS

Maureen

Holten v. City of Los Angeles, et al.

23TRCV03226

1. City of Los Angeles, et al.'s Motion for Summary

Judgment, or Alternatively Summary Adjudication of Issues

2. LAX Integrated Express Solutions, LLC's Motion for

Summary Judgment, or in the Alternative Summary Adjudication

TENTATIVE RULING

City

of Los Angeles, et al.'s Motion for

Summary Judgment is granted.

LAX Integrated Express Solutions,
LLC's Motion for Summary Judgment is granted.

Background

Plaintiff filed her Complaint on September 29, 2023. Plaintiff alleges the following facts. Plaintiff tripped and fell on a curb after traversing a narrow walkway near Terminal 2 at Los Angeles International Airport. Defendant LAX Integrated Express Solutions, LLC was the developer of a construction project on the premises called the Automated People Mover Project. Plaintiff alleges the following causes of action: 1. Negligence; 2. Premises Liability; 3. Dangerous Condition of Public Property.

Objections

Defendant City of Los Angeles,
et al.'s Objections:

Objections 1 and 2 are overruled.

Objections 3 and 4 are sustained, in part. The Court agrees that the exhibits B and C fail to comply with Cal., Rules of Court, Rule 3.1116(b). By attaching the entirety of the deposition testimony, this has created more burden upon the Court. However, the Court simply admonishes Plaintiff and Plaintiff counsel. The Court has still considered and reviewed the evidence presented because striking the entirety of the exhibits on this procedural ground would be unduly harsh and punitive.

Objections 5 and 6 are sustained.

LAX Integrated Express
Solutions, LLC's Objections:

Objection 1 is overruled.

Objections 2 and 3 are sustained.

Motions for
Summary Judgment/Adjudication

The purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) "Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal. App. 4th 1110, 1119.)

"On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." (Scaif v. D. B. Log Homes, Inc. (2005) 128 Cal. App. 4th 1510, 1519.) A defendant moving for summary judgment or summary adjudication "has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action." CCP § 437c(p)(2). "Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." CCP § 437c(p)(2). "If the plaintiff cannot do so, summary judgment should be granted." Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal. App. 4th 463, 467.

"A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." Code Civ. Proc., § 437c(p)(1).

"When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most

favorable to the party opposing summary judgment.” (Avivi, 159 Cal.App.4th at 467; CCP § 437c(c).)

City of Los Angeles, et al.

Defendants move for summary judgment, or, in the alternative summary adjudication of issues. The motion is made on the grounds that there is no triable issue of material fact and Defendants are entitled to judgment.

In the Notice of Motion, Defendants identify the following issues sought to be adjudicated

“Issue 1 - Plaintiff’s first cause of action for negligence against LAWA is barred as a matter of law because LAWA is a public entity and may only be held liable pursuant to statute.

Issue 2 - Plaintiff’s first cause of action for negligence against LAWA is barred as a matter of law because it is entirely duplicative of Plaintiff’s third cause of action for dangerous condition of public property under Government Code § 835.

Issue 3 - Plaintiff’s second cause of action against LAWA for premises liability is barred as a matter of law because LAWA is a public entity and may only be held liable pursuant to statute.

Issue 4 - Plaintiff’s second cause of action against LAWA for premises liability is barred as a matter of law because it is entirely duplicative of Plaintiff’s third cause of action for dangerous condition of public property under Government Code § 835.

Issue 5 - Plaintiff’s third cause of action should be adjudicated in favor of LAWA on the ground that Plaintiff cannot demonstrate the existence of a dangerous condition of public property or that LAWA had actual or constructive notice of a dangerous condition.” (Notice of Motion, p. 2, lines 5-18).

Defendants met their initial burden to show that Plaintiff’s causes of action have no merit by showing that one or more elements of the causes of action cannot be established. Plaintiff has not met her burden

to provide specific facts to show that a triable issue of material fact exists as to her causes of action. CCP § 437c(p)(2).

Government Code, section 830.2 states:

"A condition is not a dangerous condition within the meaning of this chapter if the trial or appellate court, viewing the evidence most favorably to the plaintiff, determines as a matter of law that the risk created by the condition was of such a minor, trivial or insignificant nature in view of the surrounding circumstances that no reasonable person would conclude that the condition created a substantial risk of injury when such property or adjacent property was used with due care in a manner in which it was reasonably foreseeable that it would be used."

Gov. Code, § 835 states:

"Except as provided by statute, a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either:

(a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or

(b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition."

Gov. Code, § 835.2 states:

"(a) A public entity had actual notice of a dangerous condition within the meaning of subdivision (b) of Section 835 if it had actual knowledge of the existence of the condition and knew or should have known of its dangerous character.

(b) A public entity had constructive notice of a

dangerous condition within the meaning of subdivision (b) of Section 835 only if the plaintiff establishes that the condition had existed for such a period of time and was of such an obvious nature that the public entity, in the exercise of due care, should have discovered the condition and its dangerous character. On the issue of due care, admissible evidence includes but is not limited to evidence as to:

(1) Whether the existence of the condition and its dangerous character would have been discovered by an inspection system that was reasonably adequate (considering the practicability and cost of inspection weighed against the likelihood and magnitude of the potential danger to which failure to inspect would give rise) to inform the public entity whether the property was safe for the use or uses for which the public entity used or intended others to use the public property and for uses that the public entity actually knew others were making of the public property or adjacent property.

(2) Whether the public entity maintained and operated such an inspection system with due care and did not discover the condition."

"[C]onstructive notice may be imputed if it can be shown that an obvious danger existed for an adequate period of time before the accident to have permitted the [public entity], in the exercise of due care, to discover and remedy the situation." *Carson v. Facilities Development Co.* (1984) 36 Cal.3d 830, 842–43 (internal citations and quotations omitted). "Because the owner is not the insurer of the visitor's personal safety, the owner's actual or constructive knowledge of the dangerous condition is a key to establishing its liability. Although the owner's lack of knowledge is not a defense, [t]o impose liability for injuries suffered by an invitee due to [a] defective condition of the premises, the owner or occupier must have either actual or constructive knowledge of the dangerous condition or have been able by the exercise of ordinary care to discover the condition, which if known to him, he should realize as involving an unreasonable risk to invitees on his premises...." *Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1206 (internal citations and quotations omitted).

"The elements of a cause of action for negligence are duty, breach, causation, and damages." *Johnson v. Prasad* (2014) 224 Cal.App.4th 74, 78. "The elements of a cause of action for premises liability are the same as those for negligence: duty, breach, causation, and damages." *McIntyre v. The*

Colonies-Pacific, LLC (2014) 228 Cal.App.4th 664, 671. Civil Code section 1714(a) provides, in relevant part: "Everyone is responsible, not only for the result of his or her willful acts, but also for an injury occasioned to another by his or her want of ordinary care or skill in the management of his or her property or person, except so far as the latter has, willfully or by want of ordinary care, brought the injury upon himself or herself." "Since Rowland v. Christian (1968) 69 Cal.2d 108, the liability of landowners for injuries to people on their property has been governed by general negligence principles." Pineda v. Ennabe (1998) 61 Cal.App.4th 1403, 1407.

"The owner of premises is under a duty to exercise ordinary care in the management of such premises in order to avoid exposing persons to an unreasonable risk of harm. A failure to fulfill this duty is negligence." Brooks v. Eugene Burger Management Corp. (1989) 215 Cal.App.3d 1611, 1619.

Defendants have met their burden to provide competent admissible evidence to establish that Defendant did not breach a duty of care owed to Plaintiff and that Defendants did not cause Plaintiff's damages. Defendants' evidence establishes that Plaintiff was traversing from Terminal 2 to Terminal 7 through a temporary pedestrian walkway which was in place from the on-going "Automated People Mover Project" ("Project") at LAX. (Defendant's Separate Statement of Facts and Supporting Evidence ("UMF") 22-27). LAX Integrated was the developer of the Project. Plaintiff emerged from the walkway, which by its nature, was not as brightly lit as the outside area. As Plaintiff emerged, the outside area was bright and sunny. (Id. at 29). Shortly thereafter, Plaintiff clipped her foot on a curb and fell. (Id. at 34-35).

Defendant submitted competent admissible evidence that the area where Plaintiff fell was a standard concrete curb ramp that was not unusual and which had existed for many years. (Id. at 34-37, 47). Defendant submitted a photograph of the area where Plaintiff fell which Plaintiff marked with an 'X' at her deposition. (Defendant's Ex. P.) The evidence establishes that the area of the fall was a standard curb ramp providing a smooth transition between the sidewalk and roadway elevations. (Decl., Jacob Adams, ¶¶ 5-6). In fact, such transitions are common and are mandated, at times, under the ADA. (Id.) Thus, Defendant's evidence establishes that the fall occurred merely due to the inadvertence of Plaintiff rather than any defect in the condition of the property.

Plaintiff submitted no competent evidence to establish

that Defendant breached any duty of care to Plaintiff or caused Plaintiff's damages. In opposition, Plaintiff simply provided evidence that essentially reiterated her version of how she fell. No competent evidence was submitted to show that the walkway and area where she fell was defective in any manner, such as existence of cracks, intrusions, and/or undue moisture. In addition, even had such evidence been presented, Plaintiff submitted no competent evidence to establish that Defendants had actual or constructive notice of a dangerous condition.

Plaintiff's own deposition testimony confirms that there were no obstructions, no distractions, and that the area was well lit. Plaintiff also states that she did not necessarily look down to see where she was at the time but that she was "just on a mission to get to [her] next stop." (Defendant's UMF 34). Plaintiff has failed to present sufficient evidence to establish the existence of a triable issue of material fact as to whether Defendant City can be deemed to have actual or constructive notice of any alleged dangerous condition. Plaintiff argues that the contrast between the dark tunnel walkway to the bright sunlit area outside the walkway consists of a dangerous condition. However, no authority is presented to show that this type of design constitutes a dangerous condition. Arguably, not having a safe walkway in a construction area would, itself, constitute a dangerous condition. Plaintiff also speculates regarding the white substance that she discovered on her clothing after the fall. However, no competent evidence was submitted to show that any foreign substance actually caused or contributed to her fall. Thus, Plaintiff submitted no evidence to show the existence of a triable issue of material fact as to the essential elements of breach and causation of her causes of action.

As to Defendants' Motion for Summary Adjudication of Issues 1 to 4, the motion for summary adjudication is moot upon the Court's order granting the Motion for Summary Judgment. However, the Court does note that all liability against a public entity must be based on a statute. The statutory basis set forth for statutory liability as noted in the Complaint is Gov. Code § 835 which is articulated throughout the Complaint. More specifically, Plaintiff set forth a distinct third cause of action for Dangerous Condition of Public Property. Thus, essentially, the first and second causes of action are duplicative of the third cause of action.

Defendant City of Los Angeles, et al.'s Motion for Summary Judgment is granted.

LAX Integrated

Defendant LAX Integrated Express Solutions, LLC ("LAX Integrated") moves for summary judgment or in the alternative summary adjudication. The motion is made on the following grounds.

"1. LAX Integrated moves for summary judgment/adjudication on the grounds that Plaintiff's Complaint only alleges causes of action based on California Government Code section 835 which only applies to "public entities." LAX Integrated is not a public entity; therefore, Plaintiff's claims fail as a matter of law (SSUMF Nos. 16, 20).

2. To the extent the Court finds a triable issue as to whether LAX Integrated is a public entity, and/or if the Court determines that Plaintiff's Complaint sufficiently pleads a common law negligence/premises liability claim, then LAX Integrated moves, in the alternative, for summary judgment/adjudication based on the fact that Plaintiff cannot establish she tripped as a result of any dangerous condition. (SSUMF Nos. 1-15)

3. LAX Integrated also moves, in the alternative, for summary judgment/adjudication on the grounds that Any Premises Liability Claim Also Fails Because LAX Integrated Did Not Control The Curb, Nor did it Have any Notice of Any Defect in the curb where Plaintiff tripped. (SSUMF Nos. 17 19; 21-23.)" (Notice of Motion, p. 2, lines 9-22).

Defendant met its initial burden to show that Plaintiff's causes of action have no merit by showing that one or more elements of the causes of action cannot be established. Plaintiff has not met her burden to provide specific facts to show that a triable issue of material fact exists as to her causes of action. CCP § 437c(p)(2).

The Court refers the parties to the analysis above regarding City of Los Angeles, et al.'s Motion for Summary Judgment. Similarly, Defendant LAX Integrated has provided competent admissible evidence that it did not breach a duty of care and did not cause Plaintiff's injuries as Plaintiff fell simply from leaving a tunnel walkway to a brightly lit area and from failing to safely traverse a common curb ramp. (Defendant LAX Integrated Separate Statement of Facts and Supporting Evidence ("UMF") 1-15). For the same reasons noted above, Plaintiff failed to submit any competent evidence to show that Defendant LAX

Integrated created a defective condition of property and/or had notice of any alleged dangerous condition of property. Thus, Plaintiff submitted no evidence to show the existence of a triable issue of material fact as to the essential elements of breach and causation of her causes of action.

The Court deems that the Defendant's motion for summary adjudication is moot upon the order granting Defendant's motion for summary judgment. Thus, Defendant's motion for summary judgment is granted.

Defendants are ordered to give notice of this ruling.